

**BEFORE THE
FEDERAL MARITIME COMMISSION**

DOCKET NO. 22-34

SEAFAIR USA LLC

VS.

**STERLING CONTAINER LINE LIMITED AND
ATLANTIC FORWARDING LTD.**

**RESPONDENTS' RESPONSE IN OPPOSITION TO
COMPLAINANT'S MOTION FOR LEAVE TO FILE REPLY**

Respondents Sterling Container Line Limited (“Sterling”) and Atlantic Forwarding Ltd. (“Atlantic,” and together with Sterling, the “Respondents”), pursuant to 46 C.F.R. § 502.71(b), submit this Response in Opposition to Complainant SeaFair USA, LLC’s (“Complainant” or “SeaFair”) Motion For Leave to File Reply to Respondents’ Response in Opposition (“Complainant’s Motion”) of August 14, 2024. Respondents oppose Complainant’s Motion, as Complainant has not set forth any extraordinary circumstances that warrant leave to file a reply, but instead simply repeats the same arguments made in its original Motion to Strike Respondents’ Petition for Attorney Fees. Accordingly, Complainant’s Motion should be denied.

In support of this Response in Opposition, Respondents state as follows.

I. Argument

Rather than having the Presiding Officer issue a critical determination on attorney fees in the instant case on the merits and based on full and complete briefings from all parties, Complainant seeks to strike Respondents’ timely filed and docketed Petition for Attorney Fees, the Declaration of Ashley K. Kelley in Support of Respondents’ Petition for Attorney Fees, and

Respondents' Motion for Confidential Treatment (collectively, the "Petition Filing") that the Federal Maritime Commission ("FMC") deemed received and served on June 14, 2024 as Document Numbers 41, 42, and 43.

On July 11, 2024, Complainant served its Reply to Respondents' Petition Filing to the Administrative Law Judge via email (to judges@fmc.gov) and on counsel for Respondents via email. In early August, the Presiding Officer noted that Complainant's Reply had not been docketed to date in this proceeding by the Commission, and should be filed with the Secretary along with a Motion for Leave to File Reply Out of Time. Respondents immediately consented to Complainant's Motion for Leave to File a Reply.

Complainant then filed a Motion to Strike Respondents' Petition for Attorney Fees on August 2, 2024 (Doc. No. 46), and alternatively sought leave to file a Reply to Respondents' Petition for Attorney Fees. Respondents filed their Response in Opposition to Complainant's Motion to Strike on August 9, 2024 – which consented to Complainant's Motion for Leave to File a Reply, but objected to the Motion to Strike Respondents' Petition for Attorney Fees. (Doc. No. 47).

Complainant has not made a showing of extraordinary circumstances that warrant a filing of a reply to Respondents' Response in Opposition, as required by 46 C.F.R. § 502.71(c). The most efficient and least prejudicial path forward is clear - Respondents' Petition Filing and Complainant's Reply to Respondents' Petition Filing of July 11, 2024 (Exhibit 1 to Complainant's Motion, Doc. No. 46) should both be considered in full by the Presiding Officer prior to issuing a determination pursuant to 46 C.F.R. § 502.254(f).

There are no new arguments raised in Complainant's proposed Reply, and no extraordinary circumstances are alleged by Complainant that warrant a Reply filing here. Complainant's

argument in its instant Motion are the same as those in its original Motion to Strike Respondents' Petition for Attorney Fees: that because Respondents' email service of the Petition Filing on June 14, 2024 to counsel for Complainant and the Administrative Law Judge ("ALJ") at "judges@fmc.gov" did not also copy "secretary@fmc.gov," Respondents' Petition Filing should be struck from the record, despite the fact that the Petition Filing was filed with the ALJ pursuant to 46 C.F.R. § 502.254(c)(2)(i) on June 14, 2024, served upon the ALJ and counsel for Complainant on June 14, 2024, and accepted, docketed, and deemed as served by the Commission on the public docket in this proceeding on June 14, 2024 as Document Numbers 41, 42, and 43.

Complainant's gamesmanship should not be rewarded, and it's Motion for Leave to File a Reply should be denied. As discussed in Respondents' Response in Opposition to the Motion to Strike (Doc. No. 47, p. 4-5), even to the extent that § 502.254(c)(2)(i) requires supplemental service on the Secretary and this was in fact a minor procedural error, it was in no way prejudicial to the parties, and the Presiding Officer should waive this requirement in the interest of effectuating an expeditious proceeding that is decided on the merits under their 46 C.F.R. § 502.10 authority and to prevent undue hardship and manifest injustice to the Respondents.

In sum, Complainant has not made a proper showing under 46 C.F.R. § 502.71(c) that extraordinary circumstances are present and which warrant a Reply filing here. Rather, Complainant simply seeks to get the last word to make repetitious arguments on a purported minor procedural technicality to strike a filing that the Commission has properly deemed as served and received since the day it was filed by Respondents, in a final effort to avoid having the Presiding Officer issue a decision on the merits of the parties' briefs.

Accordingly, Respondents respectfully request that the Presiding Officer (i) consider Respondents' Petition Filing as timely and properly filed and served; (ii) consider Complainant's

July 11, 2024 Reply to Respondents' Petition for Attorney Fees; and (iii) deny Complainant's Motion for Leave to File a Reply, prior to issuing its ruling on the Petition Filing pursuant to 46 C.F.R. § 502.254(f).

II. Conclusion

46 C.F.R. § 502.71(c) provides that a moving party may not file a reply to a response to a non-dispositive motion unless requested by the Commission or Presiding Officer, or upon a showing of extraordinary circumstances. No such extraordinary circumstances having been alleged by the Complainant, Complainant's Motion for Leave should be denied. For the reasons articulated herein and in Respondents' Response in Opposition to the Motion to Strike (Doc. No. 47), Respondents respectfully request an Order *denying* Complainant's Motion to Strike Respondents' Petition for Attorney Fees, *denying* Complainant's Motion for Leave to File a Reply, and *granting* Complainant's Motion for Leave to File Reply to Respondents' Petition for Attorney Fees Out of Time.

Respectfully Submitted,

/s/ Ashley K. Kelley

Ashley K. Kelley, Esq.

(SC #78013; US District Court for the
District of South Carolina #10369)

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*Counsel for Atlantic Forwarding Ltd. and Sterling
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CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 21st day of August, 2024, the foregoing Respondents' Response in Opposition to Complainant's Motion for Leave to File Reply was served via electronic mail on:

Federal Maritime Commission
Office of the Secretary
secretary@fmc.gov

Federal Maritime Commission
The Honorable Alex M. Chintella
Presiding Administrative Law Judge
judges@fmc.gov

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